



Appeal Decision

Site visit made on 2 September 2026

by **P Barton BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 17 September 2026

Appeal Ref: 6011150

Land off Welshpool Road and adjacent to Southerly, Chavel, Ford, Shrewsbury, Shropshire SY5 9LB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by G Harrison and A Hall against the decision of Shropshire Council.
 - The application Ref is 25/04311/PIP.
 - The development proposed is described as “application for permission in principle for the development of between seven and eight dwellings on land off Welshpool Road and adjacent to Southerly, Chavel, Ford, Shropshire”.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were given the opportunity to comment, and the comments received have been taken into account in the determination of the appeal.
3. The proposal is for permission in principle. The Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has 2 stages: the first (or permission in principle stage) establishes whether a site is suitable in principle and the second (technical details consent stage) is when the detailed development proposals are assessed. This appeal relates to the first stage.
4. The scope of the considerations for permission in principle is limited to location, land use and the amount of development proposed. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted. I have determined the appeal accordingly.

Main Issues

5. The main issues are whether the site is suitable for residential development, having regard to its location, the proposed land use and the amount of development, with particular reference to:
 - whether the site would be a suitable location for the proposed development, in respect of the spatial strategy in the Development Plan, and accessibility to services and facilities; and
 - the effect of the proposal on the character and appearance of the area.

Reasons

Location

6. As an irregular-shaped parcel of land with hedgerows and trees along the boundaries of the open fields, the appeal site sits alongside further open fields, a group of dwellings and the busy A458.
7. Policy CS1 of the Shropshire Local Development Framework: Adopted Core Strategy (March 2011) (CS) and policy MD1 of the Shropshire Council Site Allocations and Management of Development (SAMDev) Plan (17/12/15) (SAMDev Plan) set out the strategic approach to the location of development in the district. These policies aim to meet its needs and to make its settlements more sustainable and development will be supported in Shrewsbury, the Market Towns and Key Centres, and the community Hubs and Community Cluster settlements. Outside of these settlements, development will primarily be for economic diversification and to meet the needs of the local communities for affordable housing.
8. The appeal site is located outside of any of these settlements and therefore, for planning policy purposes, is classed as in the open countryside, where CS Policy CS5 establishes that new development will be strictly controlled. The policy provides a list of scenarios where on appropriate sites, which maintain and enhance countryside vitality and character as well as improve the sustainability of rural communities by bringing local economic and community benefits, proposals will be permitted. Based on the evidence before me, none of these would be met by the proposed development. Moreover, the proposal would not represent the types of housing development in the countryside given in SAMDev Policy MD7a, which strictly controls new market housing outside these settlements. Therefore, the proposed development is contrary to the Council's development plan spatial strategy.
9. CS Policy CS6 states that to achieve an inclusive and accessible environment, amongst other things, proposals likely to generate significant levels of traffic are required to be located in accessible locations where opportunities for walking, cycling and use of public transport can be maximised and the need for car based travel can be reduced.
10. Whilst not identified as such in the development plan, comments have been made by the main parties as to whether Chavel is a settlement. The definition of a settlement in the Framework includes cities, towns, villages and other predominantly built-up areas, but not hamlets and scattered groups of houses located outside predominantly built-up areas.
11. Chavel consists of a ribbon of houses, a restaurant, a hot food takeaway and a petrol filling station with a convenience store, to the southern side of the A458, and a more sporadic cluster of dwellings to the northern side. Due to the modest area covered by development and the prevailing sense of openness between the buildings with views of the surrounding countryside, I found that Chavel did not comprise a predominantly built-up area and therefore does not constitute a settlement for the purposes of my assessment.
12. Unchallenged distances of 400m, 440m and 450m to the restaurant, takeaway and convenience store respectively have been indicated. Furthermore, a bus stop and

a primary school are positioned further west at a distance of some 700m and 800m. The route to these from the appeal site would be via a lit footpath, with a central refuge crossing fronting the petrol filling station and convenience store.

13. Nevertheless, and despite this stretch of the A458 being subject to a 40mph speed limit, the footpath is narrow in places and positions pedestrians in close proximity to the busy traffic flow travelling east, which includes a noticeable proportion of large commercial vehicles that create a distinctive wind blast as they pass. The impact of these passing vehicles would be amplified during adverse weather. Cyclists using the A458 in either direction would also face a similar experience. Consequently, these conditions, in conjunction with the distances involved, would not be an attractive option for walking or cycling to access these services and facilities. The presence of public rights of way to Ford has not altered my findings as these are partly across fields via unlit and unmade surfaces
14. Therefore, due to a lack of genuinely sustainable travel choices, the occupants of the proposed dwellings would be heavily reliant on private motor vehicles to access services and facilities on a regular basis.
15. In addition, there is no compelling evidence before me that future occupants of the proposed houses would use the services and facilities on the A458 or within Ford, thereby enhancing or maintaining their vitality, rather than those that would be found in a town.
16. My attention has been drawn to the granting of permission in principle¹ for the replacement of an existing dwelling with 3 new dwellings in close proximity to the appeal site. I note that in the reason for approval the Council refers to Chavel as a hamlet and close to the village of Ford, and that the site is within reasonable walking distance of services and facilities. However, that development related to an existing residential use on the site and was located marginally closer to the services and facilities. Moreover, I have assessed the appeal scheme before me under the latest version of the Framework, including its definition of a settlement. I have therefore considered the appeal before me on its individual planning merits.
17. A further appeal decision² presented is materially different to the scheme before me. In that case, the Inspector found that future occupiers would have access to a reasonable bus service, with a bus stop at an approximate distance of 250m. As detailed above, such a scenario would not apply in this case. As such, a comparison is of limited relevance in this instance.
18. Moreover, I have found a former proposed housing allocation³ not to be comparable to the appeal site as it immediately adjoins Ford, including the bus stop on the A458 and on the opposite side of But Lane to the primary school. Furthermore, this allocation formed part of the previous draft Local Plan that was withdrawn.
19. I understand that the Council, as part of a comprehensive 'scoping consultation' for the next Local Plan, has sought views on a draft 'Community Hierarchy' that includes an assessment of the connectivity of all recognisable named communities in the district. Although this document, including the connectivity score of Chavel,

¹ Planning Decision Ref: 26/00858/PIP

² Appeal Decision Ref: 6005634

³ Housing allocation FRD011

is a material consideration, in light of the current stage of preparation of the emerging plan, I give this limited weight.

20. For the above reasons, I conclude that the appeal site is not in a suitable location for the proposed development, in respect of the spatial strategy in the Development Plan, and accessibility to services and facilities. It would conflict with CS Policies CS1, CS5 and CS6, as well as SAMDev Plan Policies MD1 and MD7a.
21. The reason for refusal refers to CS Policy CS11, which relates to the type and affordability of housing. As detailed development proposals are assessed at the second stage of the permission in principle consent route, I have found this policy not to be determinative on this main issue.

Character and appearance

22. The appeal site consists of part of a larger field and an existing vehicular access off the A458 that runs parallel to this highway and serves the field as well as Burnell House. High vegetation runs along much of the site's boundaries as well as the remainder of the field to the east that is also in the appellant's control. Whilst this reduces views of the site, glimpses are possible through breaks in the vegetation with clearer and far-reaching views possible from the access.
23. The proposal would not represent the rounding off of existing development, as only a relatively small part of the appeal site would be positioned between the spacious grounds of Southerly and Burnell House. I found the majority of the site to have a strong visual and physical relationship with the large expanse of open countryside that lies to the east and north, thereby making a positive contribution to the character and appearance of the area.
24. The indicative layout shows the provision of a main road off the access and 2 further smaller service roads serving 8 detached dwellings. Whilst no detailed plans are before me, the development of the site with 7 or 8 dwellings with associated access and hardstanding, would form a significant urbanising intrusion into the countryside, eroding the rural character and appearance of the area.
25. An appeal decision⁴ that found a housing proposal would infill a gap between existing residential properties has been presented in support of the proposal. Due to the size of the appeal site and its relationship with existing development, I have found this not to be the case with the scheme before me and therefore cannot draw any direct comparison with the proposal that would weigh in its favour.
26. In conclusion, the proposed development would have an unacceptable effect on the character and appearance of the area, contrary to CS Policies, CS5, CS6 and CS17 and SAMDev Plan Policy MD2. Together these policies seek, inter alia, developments that contribute to and respect local context and character, including the form and layout of existing development.

Other Matters

27. The second reason for refusal relates to the total floorspace of the proposal being likely to exceed 1000 square metres, which would categorise it as a major development and thereby causing it to be excluded from a grant of permission in

⁴ Appeal decision Ref: 6005634

principle. However, in this case, permission in principle has been sought for between 7 and 8 dwellings on the appeal site, which is below the 10 houses or more threshold for a major development. Moreover, as this is the first stage of the permission in principle consent route and there are no detailed plans before me, including floor areas, the appeal scheme does not constitute a major development.

28. I acknowledge the Council's concerns surrounding the efficient use of the land in the event permission in principle were to be granted. Nevertheless, as I am dismissing the appeal for other reasons, including its effect on the character and appearance of the area based on the proposed range of dwellings, I have found this to not be a determinative matter, and it is not necessary for me to examine this further.
29. The appellant refers to positive pre-application discussions. However, I am mindful that pre-application discussions are informal and not binding on any future decision the Council may make once a proposal has been subject to the formal planning process. This has not swayed me from my conclusions on the main issues in this case.
30. It is suggested that the proposal would deliver an appropriate level of affordable housing. However, as the proposal relates to a permission in principle, any provision could not be secured since planning conditions or obligations cannot be included. Any provision would need to be secured at the technical details consent stage.

Planning Balance

31. The appeal site would not be in a suitable location for the proposed development, in respect of the spatial strategy in the development plan, and accessibility to services and facilities, and would also have an unacceptable effect on the character and appearance of the area. I have found that the proposal would conflict with the development plan as a whole.
32. There is no dispute between the parties that the Council cannot currently demonstrate a five-year supply of deliverable housing sites, though the Council has stated the figure at 4.61 years and the appellant refers to 3.81 years given in an appeal decision⁵. However, irrespective of the scale of the housing land supply shortfall, the proposed development does not fall within any of the forms of development given in policy S5(1) of the Framework, including S5(1)(j) as, for the reasons already given, the appeal site is not physically well-related to an existing settlement. Consequently, the appeal scheme falls to be considered under policy S5(4), where proposals should only be approved in exceptional circumstances, where the benefits of the proposal would substantially outweigh the adverse effects, including to the character of the countryside and in relation to promoting sustainable patterns of movement.
33. Paragraph 2 of Annex A of the Framework states that development plan policies should not be given reduced weight simply because they were adopted prior to the publication of the Framework. The spatial strategy set out in CS Policies CS1, CS5 and CS6, as well as SAMDev Plan Policies MD1 and MD7a is consistent with the Framework's aim in locating development where it can support sustainable

⁵ Appeal Decision Ref: APP/L3245/W/25/3362414)

patterns of movement. However, considering the lack of a 5-year housing land supply, I attribute moderate weight to this conflict.

34. CS Policies, CS5, CS6 and CS17 and SAMDev Plan Policy MD2 are also consistent with the Framework in requiring development proposals to respond to their context, so that they integrate with and enhance their surroundings. Whilst there is scope to mitigate some of the harm through the technical details consents stage, due to the long-lasting nature of the effects, I afford significant weight to this conflict. In addition, national decision-making policy DP3(3) advises that development proposals should be refused if, without clear justification, they conflict with DP3(1), as is the case here with the evidence before me.
35. Set against the harm that I have identified, there would be benefits associated with the development. The proposal would make a positive contribution in the creation of 7 or 8 dwellings, where the Framework instructs substantial weight to be given to the provision of homes. There could also be the potential for the provision of affordable housing. There would also be associated economic benefits during the period of construction and once the dwellings are occupied as well as the delivery of Biodiversity Net Gain.
36. Having regard to the scale and permanence of the development, the benefits would not substantially outweigh the adverse effects, and exceptional circumstances have not been demonstrated. As such the presumption in favour of sustainable development set out in policy S5 of the Framework does not apply.

Conclusion

37. The proposal conflicts with the development plan as a whole and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. The appeal is therefore dismissed.

P Barton

INSPECTOR